

9:00 A.M.

Calendar Line # 1

Case Name Zowie Mason et al vs Aurelia Amezcua et al

Case No. 22CV401891

Motion for Summary Judgment

Before the court is defendants Costco Wholesale Corporation and Ricky Lozano Reyna's motion for summary judgment. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

On or about August 28, 2021, Heidi Maul, Michael Maul, and Lisa Trevino ("Decedents") were traveling eastbound on SR-132. (Complaint, ¶¶14, 16, and 17). At the same time, defendants Aurelia Amezcua ("Amezcua") and Ricky Lazaro Reyna ("Reyna") were traveling in separate vehicles westbound on SR-132. (Complaint, ¶17).

Defendant Reyna was not staying in his lane, which caused other drivers fear and concern. (Complaint, ¶19). To avoid defendant Reyna's unsafe driving, defendant Amezcua attempted to overtake defendant Reyna. (*Id.*). Defendant Amezcua failed to exercise reasonable care when attempting to overtake [defendant Reyna's vehicle] and struck Decedents' vehicle causing Decedents to lose their lives. (Complaint, ¶18).

Defendant Costco Wholesale Corporation ("Costco") owned or controlled the vehicle driven by defendant Reyna. (Complaint, ¶20). Defendant Reyna operated the vehicle with the express or implied authority/ permission of defendant Costco, as an agent of defendant Costco while acting in the course and scope of his agency or employment with defendant Costco. (*Id.*). Defendant Costco knew or should have known defendant Reyna was unfit to operate the vehicle and was negligent in hiring, retaining, training, and entrusting the vehicle to defendant Reyna. (*Id.*).

On July 1, 2022, plaintiffs Zowie Mason, the daughter and stepdaughter of decedents Heidi Maul and Michael Maul; Gilbert Hernandez and Miguel Trevino, sons of decedent Lisa Trevino, (collectively, "Plaintiffs") filed a complaint against defendants Amezcua, Reyna, and Costco asserting causes of action for:

- (1) Negligence
- (2) Wrongful Death

On September 16, 2022, defendant Amezcua filed her answer to Plaintiffs' complaint.

Also on September 16, 2022, defendants Costco and Reyna filed a Judicial Council form cross-complaint against co-defendant Amezcua asserting claims for:

- (1) Indemnification
- (2) Apportionment of Fault
- (3) Contribution

On November 17, 2022, cross-defendant Amezcua filed an answer to Costco and Reyna's cross-complaint.

On December 13, 2022, defendants Costco and Reyna filed an answer to Plaintiffs' complaint.

On December 11, 2023, defendants Costco and Reyna filed the motion now presently before the court, a motion for summary judgment of Plaintiffs' complaint. Hearing on defendants Costco and Reyna's motion has been continued by this court seven times, often at Plaintiffs' request due to Amezcua's criminal prosecution and consequent unavailability for deposition. The original hearing date for this motion was March 5, 2024 and has been continued to May 21, 2024; September 10, 2024; December 12, 2024; April 17, 2025; August 26, 2025; January 6, 2026; and now May 21, 2026.

On February 5, 2026, the court issued an order granting defendant Amezcua’s motion to consolidate this case with case number 24CV452173, *Magana, et al. v. Amezcua, et al.*

II. LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843). In analyzing motions for summary judgment or adjudication, courts must apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294). “[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519). A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2)). If the moving party fails to carry its burden, the inquiry is over, and the motion must be denied. (See *Id.*; see also *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468). Even if the moving party does carry its burden, the non-moving party will still defeat the motion by presenting evidence of a triable issue of material fact. (*Aguilar, supra*, 25 Cal.4th at 849-50). Therefore, summary judgment or adjudication is granted when, after the Court’s consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc. § 437c(c); *Villa v. McFarren* (1995) 35 Cal.App.4th 733, 741).

To meet this burden of showing a cause of action cannot be established, a defendant must show not only “that the plaintiff *does not possess* needed evidence” but also that “the plaintiff *cannot reasonably obtain* needed evidence.” (*Aguilar, supra*, 25 Cal.4th at p. 854)(emphasis added). It is insufficient for the defendant to merely point out the absence of evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891). The defendant “must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim.” (*Id.*). The supporting evidence can be in the form of affidavits, declarations, admissions, depositions, answers to interrogatories, and matters of which judicial notice may be taken. (*Aguilar, supra*, 25 Cal.4th at p. 855). “Once the defendant. . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2)). The plaintiff may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.” (*Id.*) “If the plaintiff cannot do so, summary judgment should be granted.” (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467).

III. ANALYSIS

A. REQUEST FOR CONTINUANCE

In opposition, Plaintiffs again request a continuance pursuant to Code of Civil Procedure section 437c, subdivision (h). Code of Civil Procedure section 437c, subdivision (h) states, in pertinent part, that, “If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication or both that facts essential to justify opposition may exist but cannot, for reasons stated, then be presented, the court shall deny the motion, or order a continuance to permit affidavits to be obtained or discovery to be had or may make any other order as may be just.”

“To mitigate summary judgment’s harshness, the statute’s drafters included a provision making continuances—which are normally a matter within the broad discretion of trial courts—virtually mandated upon a good faith showing